

Personal Details of Business Owner

*Surname																												
*First Name																												
Middle Name																												
*Contact/Phone Number																												
*Residential Address																												
*Gender:	☐ M	☐ F	*Date of Birth																		Place of Birth							
*ID Type	☐ Passport	☐ Driver's License	☐ National Id	☐ Voter's Card					*ID Number																			
*E-mail Address																												
Nationality																												

 Passport
Photo

Business Details

*Business Name																												
*Location Address																												
*Local Govt Area																												
*Company Registration No																												
*Type of Business:	☐ Sole Proprietorship	☐ Partnership	☐ Limited Liability Company	☐ PLC																								
*Class of Agent:	☐ Classic	☐ Standard	☐ Prestige																									
Bank Name																												
*Account Type:	☐ Current	☐ Savings					Account Number																					
*E-mail Address																												

Director's Details (where applicable)

*Name of Director																												
*ID Type																												
*Address																												

Declaration

I hereby certify that the information provided in this form is true and accurate. I agree that appropriate measures including legal actions could be taken against me, if the information I have provided here is discovered to be false.

Signature or Thumbprint

Date

OFFICIAL/INTERNAL USE ONLY

Agent Check List

Agent Registration Requirements	Classic	Standard	Prestige	Tick ☒
Character Confirmation				
Financial statement for the last 3 months (if any)				
Means of ID (Driver's license, National ID Card, International passport)				
Two passport size photograph of Principal contacts				
Account Statement for the last 6 months				
Proof of Address (utility bills)				
Certificate of Incorporation				
Any other relevant document for KYC as the scheme may deem it fit in future				
Memorandum and Article of Association (MEMART) (if any)				

Original documents shown/ presented

Approved by:

 Name

 Date

Signature

IFIS AGENT SERVICE LEVEL AGREEMENT

THIS IFIS AGENT SERVICE LEVEL AGREEMENT ("This Agreement") is made this _____ day of _____, 20____ BETWEEN:

Interswitch Financial Inclusion Services Limited a limited liability company incorporated under the laws of the Federal Republic of Nigeria and having its principal office at 15B Oko Awo Street, Victoria Island, Lagos State, (hereinafter referred to as **"IFIS"** which expression shall include its successors in title and assigns);

AND

_____, a limited liability company incorporated under the laws of the Federal Republic of Nigeria and having its principal office at _____, (hereinafter referred to as **"the Agent"** and which expression shall include its successors in title and permitted assigns).

(IFIS and the Agent shall be collectively referred to as "the Parties" or individually as "a Party").

WHEREAS

A. IFIS is duly licensed by the Central Bank of Nigeria (CBN) as a super-agent under Super Agent Banking regulations to provide financial services relating to registration of customers, cash-in, cash-out, bills payments, airtime recharge, funds transfer and other services that may be rolled out under the scheme from time to time.

B. The CBN through its guidelines has provided for agent banking as a delivery channel for banking and related Authorized Services.

C. The Agent is an entity that has been contracted to provide banking and related services under the guidelines of agent banking.

D. The Agent has represented that it has the requisite skills, knowledge, experience, capability and all necessary personnel and facilities and are competent to provide the Authorized Services within the specified geographical area.

E. The Parties wish to enter into this Agreement to set out the rights and obligations of each party under the Agent Banking Business.

NOW, THEREFORE, in consideration of these recitals, the Parties agree as follows:

1. DEFINITIONS

In this Agreement unless the context otherwise requires, the following words and expressions shall have the following meanings;

1.1. **"Agent's Account"** means the account established for the transactions and payment of Commissions in respect of the Services as hereinafter detailed.

1.2. **"Agreement Period"** shall mean the initial period of twelve (12) months from the Effective Date and thereafter, renewed automatically annually unless earlier terminated in accordance with the provisions of this Agreement.

1.3. **"Applicable Law"** means applicable laws of the Federal Republic of Nigeria including statutes, regulations, regulatory guidelines and judicial or administrative interpretations, any rules or requirements established by IFIS including any amendments or enactments thereto and any corresponding earlier enactment still in force, and subordinate legislation made under a statutory provision.

1.4. **"Authorization"** means a process through which a transaction is approved or confirmation is provided to the Agent that a transaction is successfully completed.

1.5. **"Authorization Code"** means a code provided to the Agent to indicate approval.

1.6. **"Authorized Services"** means the services the Agent is authorized to offer in accordance with the provisions of this Agreement.

1.7. **"Commissions"** means the detailed transaction charges for the Services and the approved commissions to be earned by the Agent in the course of providing the Services as agreed by the Parties.

1.8. **"Confidential Information"** means all information and data provided under this Agreement by any person or entity, whether or not in material form, whatsoever and howsoever derived or acquired relating to agency banking and Services and all other confidential or secret information disclosed by or on behalf of either party to the other including the terms of this Agreement.

1.9. **"Customers"** shall mean any users of the agency banking service.

1.10. **"Customer Data"** means all information, whether personally identifiable or in aggregate, that is submitted and/or obtained as a result of a Customer relationship.

1.11. **"Effective Date"** means the date of execution of this Agreement.

1.12. **"E-value"** means the electronic value recorded in an IFIS Agent's account, which shall represent the Agent's entitlements to an equivalent amount of the cash amount held in the settlement bank account

1.13. **"Marketing Materials"** means badges, links, sponsored e-mails, micro-sites, splash pages, other placements on the web sites, and trade, broadcast or banner advertisements, press communications, and any elements, physical or otherwise, designed to promote the agent banking and financial inclusion services.

1.14. **"User's ID"** means a person's original Nigerian Identity Card or original Passport or any other acceptable ID.

1.15. **"Outlet(s)"** means the physical address(es) of each place of business from which the Agent may provide the Services to Customers, which addresses shall be mutually agreed between the Parties.

1.16. **"Trademarks & Trade names"** shall include without limitation all associated trademarks and logos which have been assigned to the Services which may only be used by the Agent in accordance with the terms of this Agreement.

1.17. **"Transactions"** means (as the context requires) receiving cash or e-value from Customers and paying out cash sums or e-value credits to Customers in accordance with agency guidelines and shall also include, fund transfers and liquidation of tokens that require exchange of cash on the IFIS platform..

1.18. **"Transaction Limits"** means the cash limits placed on the transactions that may be effected by Agents from specific Outlets as specified.

2. APPOINTMENT

2.1. IFIS hereby appoints the Agent to offer the Authorized Services on its behalf for the duration of the Agreement Period at the Agent's authorized Outlet(s) and geographical area of operation, as may be specified from time to time. The Agent shall be required to obtain written consent, which consent shall not be unreasonably withheld and is subject to the CBN's approval, at least forty-five (45) days before effecting change of Outlet(s) and/or geographical area of operation.

2.2. The Agent shall designate a particular counter within each Outlet for agent banking and financial inclusion services. The counter shall be manned by a designated authorized primary operator who shall be duly authorized to conduct the operations of the Agency business. The application for authorization shall be done by completing and submitting to IFIS the Agent Application form.

2.3. It is understood by the Parties that the Agent shall not hold out itself as an agent or representative of IFIS. The Agent will ensure that it conforms to all the existing Applicable Laws.

3. CUSTOMER SERVICE STANDARDS

3.1. The Agent shall be required to comply with the Customer Services Standards and rules in respect of the Authorized Services as provided by IFIS from time to time.

3.2. Upon seven (7) days' notice to the Agent to remedy breach of the customer service standards as provided or any other breaches, IFIS reserves the right to terminate the Agent's appointment immediately for non-compliance with the stipulated customer service standards.

4. TERMS OF APPROVAL OF A TRANSACTION

4.1. A Transaction shall be deemed to be successful once the notification as stipulated in the procedure has been duly received by the Agent.

4.2. In the event of a dispute between the Agent and a customer on whether a transaction was successful or unsuccessful, the Agent shall refer the matter to IFIS who shall confirm whether the transaction was successful or not and determine the appropriate action.

4.3. In the event that any costs or loss is incurred and arises from such disputed Transactions as a result of the Agent's non-compliance with the laid down procedures herein, the Agent will indemnify IFIS and any other party that shall have suffered such loss as a result of the Agent's acts or omissions.

5. VERIFICATION OF CUSTOMER'S IDENTITY

5.1. The Agent shall apply diligence in validating a Customer's identity and Transactions to avoid entering into fraudulent transactions or dealing with fraudsters.

5.2. The Agent shall comply with the prescribed customer identification procedures.

6. RECORD KEEPING

All Agents are required to keep proper records in relation to their provision of the Authorized Services, including the registration particulars of each Customer for a minimum period of five (5) years after consummation of each transaction.

7. TRANSACTION LIMIT

7.1. The Agent shall comply with the cash Transaction limit with regard to a single Transaction and daily limit in line with regulatory provisions.

7.2. Any Transactions above the allowable Transaction limit shall be declined.

7.3. Where a Customer wishes to transact above the Agents specified limit, the Agent shall refer the Customer to IFIS.

7.4. The Agent shall not set any Transaction limits other than the specified Agent Transaction limits under the Agreement.

8. AGENT PROHIBITED ACTIVITIES

8.1. The Agent shall NOT engage in any of the following prohibited activities:

8.1.1. Operate when there is communication or network failure in the system.

8.1.2. Subcontract another entity to carry out Agent banking on its behalf without obtaining prior consent from IFIS.

8.1.3. Carry out offline Transactions or carry out a Transaction when a transactional receipt or acknowledgement cannot be generated.

8.1.4. Charge fees outside the specified tariffs directly to the customers

8.1.5. Carry on business when the Agents existing business has ceased or the turnovers have, in the opinion of IFIS, significantly diminished.

8.1.6. Offer any type of guarantee in favour of the Customers.

8.1.7. Offer banking services on its own accord (i.e. it shall not provide on its own account financial/banking

IFIS AGENT SERVICE LEVEL AGREEMENT

services similar to those provided by it under the agency contract).

8.1.8. Provide, render or hold itself out to be providing or rendering any banking service which is not specifically permitted under this Agreement.

8.1.9. Continue with the agency business when the Agent [or any of its directors] has a criminal record or disciplinary case involving fraud, dishonesty or any other financial impropriety.

8.1.10. Approve any loan or open a bank account on behalf of a bank.

8.1.11. Maintain a till in excess of N100,000 at any particular point in time.

8.1.12. Accept cheque deposits from customers and cash cheque(s).

8.1.13. Transact in foreign currency or decline any transactions on the basis of race, age, religion, gender, or politics.

8.1.14. Provide cash advances.

8.1.15. Hire an existing IFIS or related enterprises employee or associate to run or manage its business without prior written consent of IFIS.

9. RIGHTS, OBLIGATIONS AND DUTIES OF THE AGENT

The Agent shall:

9.1. Fulfil all documentary submissions requested and commit to such being true and dependable.

9.2. Ensure that its respective electronic money accounts are funded.

9.3. Furthermore, the Agent shall display the following in a conspicuous location in the Agents Outlet(s):

9.3.1. The Agent ID.

9.3.2. A list of the Services offered by the Agent as approved in writing.

9.3.3. A notice to the effect that the Authorized Services shall be provided subject to availability of funds.

9.3.4. A notice to the effect that if the electronic system is down, no transaction shall be carried out.

9.3.5. The certificate of appointment for the commercial activity being undertaken by the Agent.

9.3.6. The tariff guide applicable from time to time and payable to the scheme provider by the Customers.

9.3.7. Days and hours of operation.

9.3.8. IFIS' dedicated customer service telephone number.

9.3.9. Must report any suspicious transaction observed.

9.4. The Agent shall from time to time provide such required information for purposes of complying with regulatory reporting obligations, or any other information that may be reasonably required concerning the activities under this Agreement. The information should be supplied within the requested timelines and in the specified format.

9.5. The Agent shall be required to maintain a transaction record book, being evidence of every Transaction undertaken in the specified format or in such manner as shall be required. The transaction record book shall be the property of IFIS and shall be returned by the Agent upon the termination of this Agreement or when it is full before a new transaction record book is issued.

9.6. The Agent shall retain the transaction data for a period of five (5) years from the transaction date or such period as shall be advised to the Agent from time to time. The record shall contain the following information;

9.6.1. Date;

9.6.2. Agent ID;

9.6.3. Transaction ID (from the electronic or printed receipt);

9.6.4. Transaction type;

9.6.5. Transaction Value;

9.6.6. Customer name and ID; and

9.6.7. Customer's signature.

9.7. The Agent shall take all reasonable steps to protect the good name and reputation of IFIS and the Authorized Services.

9.8. The Agent shall promote the products and the Authorized Services in order to help IFIS grow its agent banking services.

9.9. The Agent shall not directly or indirectly be involved or knowingly or recklessly or negligently permit any other person to be involved in any fraud and shall notify the IFIS immediately upon becoming aware of any fraud or suspicious activities.

9.10. The Agent will implement, without delay, and comply with such procedures and rules concerning fraud as shall be advised by IFIS from time to time to protect the integrity of IFIS and the provision of the Services. IFIS affirms its right to authorize withholding Agent payments pending investigation where fraudulent activity is suspected or confirmed. Such withheld funds will be used to offset fraud-related chargebacks from Customers.

9.11. The Agent agrees to hold in confidence this Agreement and all information, documentation, data and know-how disclosed to it by IFIS and/or in pursuance of the Service and shall not disclose to any third party or use Confidential Information other than in connection with the performance of this Agreement or any part thereof without the prior consent of IFIS.

9.12. The Agent shall not use the information obtained from the Customers who subscribe to the Services in any other way other than in furtherance of this Agreement.

9.13. The Agent shall not split a transaction by requiring the customer to undertake numerous transactions in place of a single transaction requested by the customer in order to increase the Agents' commissions.

9.14. The Agent shall only use Trademarks and Trade names for the purpose of promoting and providing the Authorized Services during the Agreement Period and for no other purpose whatsoever.

9.15. The Agent shall comply with the terms of all Schedules to this Agreement as may be updated from time to time.

10. FEES AND COMMISSIONS

10.1. Transaction fees chargeable to customers for the Authorized Services shall be charged in accordance with the tariff guide on fees and commission.

10.2. The Agent shall receive commissions due to it at such interval as shall be determined by IFIS. The commission structure is attached as an annexure to this Agreement.

10.3. The Agent agrees that a right of set off shall exist against the Agent's Account for any amounts owed by the Agent to IFIS.

11. SECURITY AND INSURANCE

11.1. The Agent shall be responsible for maintaining such security safeguards to ensure the operating environment is secure as well as to obtain suitable and secure safes, cabinets as are necessary for the Authorized Services offered.

11.2. The Agent will keep in its care material and equipment entrusted to it by IFIS.

11.3. The Agent will mark or identify the materials as the property of IFIS and shall be responsible for its safe keeping.

11.4. IFIS may from time to time stipulate the minimum-security standards.

11.5. IFIS shall take out necessary insurance policy to safeguard cash-in in possession of the Agent at Agent locations in line with the provisions of agency banking guidelines..

11.6. IFIS shall not be liable for any loss suffered by the Agent arising from insecurity or any other means not covered by IFIS' insurance policy taken on the Agent's business.

12. MARKETING AND PROMOTION

12.1. IFIS shall ensure the supply to the Agent of branding and advertising support materials such as external signage, the banks' posters and internal point of sale material for the Authorized Services.

12.2. For the avoidance of doubt, materials that have been supplied to the Agent shall not be deemed the property of the Agent, and shall be returned to IFIS upon demand or upon termination of this Agreement.

12.3. The Agent shall conspicuously display the logos and the branding relating to the Authorized Services as prescribed herein within and outside the Outlets of the Agent and at the counter designated for the Agency program.

12.4. The Agency Program Operator should also be easily identifiable from any customer or any other person within the agent premises.

12.5. The Agent shall not use any promotional material whatsoever to advertise the Services unless such material is supplied by or approved in writing.

13. TERMINATION

13.1. Without prejudice to any rights of the Parties in respect of any breach of any of the provisions herein contained, this Agreement shall terminate if either of the Parties shall have served on the other in writing thirty (30) days prior notice of termination and all financial issues and accounts are settled by and with the Agent.

13.2. This Agreement shall terminate forthwith upon occurrence of any of the following events:

13.2.1. If the Agent becomes bankrupt or insolvent or convenes a meeting of, or makes or proposes to make, any arrangement or composition with its creditors or has a liquidator, receiver, administrator, manager, trustee similar officer appointed over any of its assets or is either compulsory or voluntarily wound up; or

13.2.2. If the Agent ceases or threatens to cease to carry on business for whatever reason or the Agent's account becomes dormant;

13.2.3. If the Agent breaches any terms of the agreement as agreed between IFIS and the Agent;

13.2.4. If the Agent violates a provision of the guidelines prohibiting carrying on business;

13.2.5. When the Agent's commercial activity has ceased;

13.2.6. Where the Agent is guilty of a criminal offence involving fraud, dishonesty or other financial impropriety;

13.2.7. When the agent sustains a loss or damage (financial or material) to such a degree as to make it impossible in IFIS' sole discretion for the agent to gain his financial soundness within one month from the date of the damage or loss;

13.2.8. If an agent who is a natural person dies or becomes mentally incapacitated;

13.2.9. If an Agent transfers, relocates or closes its place of agent banking business without prior written consent of IFIS;

13.2.10. If an Agent fails to hold or renew a valid business license;

13.2.11. If the Central Bank of Nigeria terminates the Agreement in the exercise of its powers under the Central Bank of Nigeria Act 2007, Banks and Other Financial Institutions Act, applicable Agency Guidelines issued by the CBN or any other applicable law; or

IFIS AGENT SERVICE LEVEL AGREEMENT

13.2.12. If in the opinion of IFIS, the Agent does not have the capacity to separate the business lines of each separate agent network from the Services contemplated under this Agreement.

13.3 The rights to terminate this Agreement given by this clause shall be without prejudice to any other right or remedy of either party in respect of the breach concerned (if any) or any other breach.

14. PROCESS UPON TERMINATION

14.1. Upon the breach, termination or expiration of this Agreement, the provisions of this sub-section shall apply and, consistent with the following:

14.1.1. The Agent and IFIS shall work together to ensure an orderly termination of the Agency Program and to settle all financial issues and accounts.

14.1.2. The Agent shall promptly return to IFIS any equipment and/or materials that have been supplied to the Agent.

14.1.3. Each Party shall promptly reconcile its accounts and pay any monies owed to the other Party.

14.1.4. IFIS reserves the right to advise the public of the termination of the Agent in its network.

14.1.5. The Agent shall not claim against IFIS for any loss of goodwill or profits.

14.1.6. The clauses on intellectual property, confidentiality and warranties and indemnities shall survive such termination.

14.2. The failure of either Party to enforce or to exercise at any time or for any period any term of or any right pursuant to this Agreement shall not be construed as a waiver of any term or right and shall in no way affect that party's right later to enforce or exercise it.

14.3. Any rights of either Party accrued at the time of termination of the Agreement or the enforcement of any breaches of the Agreement shall survive the termination of the Agreement.

15. NOTICES/APPROVALS

15.1. All notices and approvals required under this Agreement shall be in writing, and shall be deemed delivered to the Agent when sent by either of the following means:

15.1.1. By letter through registered mail to the address provided in the Agreement;

15.1.2. A confirmed postal address;

15.1.3. Short message service (SMS) to the number provided by the Agent

15.1.4. Sent to the e-mail address provided by the Agent.

15.1.5. Notices sent by registered mail shall be deemed to be served three (3) Working Days following the day of posting.

15.1.6. Notices sent by e-mail or short message service shall be deemed to be served on the day of transmission.

15.1.7. Notice to IFIS shall be in writing and sent by letter and shall be deemed to be delivered when hand delivered to the attention of

_____, 15B
Oko Awo Street, Victoria Island, Lagos.

16. NO GUARANTEED INCOME

No warranties or representations are made with regard to potential revenues that may be earned by the Agent from the provision of the Agent Banking and no reliance should be placed on any statements or projections provided by IFIS, whether verbally or in writing in this respect.

17. RIGHT OF SET OFF

17.1. IFIS or its principal bank shall have the right at all times to offset any sums owed to it by the Agent against any sums due from IFIS or its principal bank to the Agent under this Agreement.

18. GOVERNING LAW AND ARBITRATION

18.1. This Agreement shall be governed by, construed under and interpreted and enforced in all respects by the Laws of the Federal Republic of Nigeria, alongside the Agency rules and regulations issued by the CBN under which the Agent's operate.

18.2. In the event of any dispute or claim, whether based on contract or tort, arising out of or in connection with this Agreement, the Parties will endeavor to resolve such dispute through good faith negotiations as follows.

18.2.1. In the event of any dispute arising in respect of any provisions hereof, the Parties shall meet in a timely manner and negotiate in good faith towards a mutual settlement of the dispute or issue.

18.2.2. Where a dispute cannot be mutually resolved by the Parties in accordance with Clause 18.2.1 above within fourteen (14) days, either Party may institute an action for a resolution of the dispute at a court of competent jurisdiction in the Federal Republic of Nigeria.

19. ANTI-CORRUPTION

19.1 Each Party hereby undertakes that, at the date of this Agreement, itself, its directors, officers, employees or affiliates have not offered, promised, given, authorized, solicited or accepted any undue pecuniary or other advantage of any kind (or implied that they will or might do any such thing at any time in the future) in any way connected with this Agreement and that it has taken reasonable measures to prevent

subcontractors, agents or any other third parties, subject to its control or determining influence, from doing so.

19.2 Each Party shall comply with all applicable anti-bribery and anti-corruption Laws in any relevant jurisdiction (including those in the Territory and the Foreign Corrupt Practice Act of the United States of America and the Bribery Act 2010 of the United Kingdom) and all applicable anti-bribery and anti-corruption regulations and codes of practice.

IN WITNESS WHEREOF, the Parties have executed this Agreement by their duly authorized representatives on the dates below written.

SIGNED for and on behalf of the within named

FOR: [NAME OF AGENT]

AUTHORISED SIGNATORY

Name:

Designation:

Date:

AUTHORISED SIGNATORY

Name:

Designation:

Date:

FOR: INTERSWITCH FINANCIAL INCLUSION SERVICES LIMITED

AUTHORISED SIGNATORY

Name:

Designation:

Date:

AUTHORISED SIGNATORY

Name:

Designation:

Date:

CHARACTER CONFIRMATION

I _____ confirm that _____ who resides at _____

_____ is a person of good character. I recommend him/her to be a law-abiding Citizen worthy to be an IFIS Agent.

Relationship Cadre: Cleric ☐ Notary Public ☐ Community/Trade Association Leader ☐

Address _____

Guarantor's Bank Account Details

Bank Name _____ - Account Number _____

Signature _____

Guarantor's Passport